

6-7. 25CV04127 Wells Fargo Bank, N.A. v. Dashler, Cassandra O

EVENT: (1) Plaintiff's Motion for Judgment on the Pleadings

(2) Case Management Conference

Plaintiff's Motion for Judgment on the Pleadings is GRANTED. The Court will sign the proposed order and judgment. The Case Management Conference is vacated.

8. 25CV04208 Curtis-Brown, Stephanie v. Marple, Larry et al

EVENT: Plaintiff's Motion for Deemed Admissions and Request for Sanctions (Continued from 6/3/26)

Plaintiff's Motion for Deemed Admissions is moot in light of the responses provided while this motion was pending. The Court finds the responses were untimely and as a result all objections are waived.

Regarding sanctions, Defendant contends that a simple phone call would have eliminated the need to file this motion. Technically, no meet and confer is required when no responses have been provided, as was the case here. However, as we have seen in the past, if a party decides to file a motion without meeting and conferring, and it turns out there was a legitimate reason for the delayed response, we have in the past denied sanctions in appropriate circumstances.

These circumstances are more nuanced because Defendant had already received a generous 30 day extension to respond to the discovery. Ms. Savage's position that they could have simply picked up the phone and called is undermined by the fact she had already received a 30 day extension.

Nevertheless, the request for sanctions is denied. While the Court finds Plaintiff was justified in filing this motion (counsel had previously provided a 30 day extension), the unexpected medical issues encountered by defense counsel leading up to and after the responsive deadline warrant the denial of sanctions.

9. 25CV05125 Duckett, Heather v. Foremost Insurance Company et al.

EVENT: Demurrer to Plaintiff Heather Duckett's Complaint

In light of the filing of the First Amended Complaint, the motion is moot.